

NEW YORK STATE SUPREME COURT
COUNTY OF KINGS

----- X
CHRISTOPHER FOYE,

Plaintiff,

Index No.:

- against -

CITY OF NEW YORK, SARAH YENKIAH,
and JOHN DOE,

SUMMONS

Venue is designated in
Kings County

Defendants.

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED and required to serve upon the attorneys for plaintiffs an Answer to the Complaint in this action within 20 days after service of this Summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York). In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of the venue designated is CPLR § 504(3) as Kings County is the county where the events complained of occurred.

Dated: New York, New York
July 17, 2024

LUMER LAW GROUP
Attorneys for Plaintiffs

By:

Michael Lumer, Esq.
14 Wall Street, Suite 1603
New York, New York 10005
(212) 566-5060

Defendants' Addresses:

The City of New York
Office of the Corporation Counsel
100 Church Street
New York, New York 10007

PO Sarah Yenkiah, Tax 970948
NYPD PSA 1
2860 West 23 Street
Brooklyn, New York, 11224

NEW YORK STATE SUPREME COURT
COUNTY OF KINGS

----- X
CHRISTOPHER FOYE,

Plaintiff,

Index No.:

- against -

CITY OF NEW YORK, SARAH YENKIAH,
and JOHN DOES 1 and 2,

VERIFIED COMPLAINT

Venue is designated in
Kings County

Defendants.

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Plaintiff CHRISTOPHER FOYE, by his attorneys, the Lumer Law Group, hereby
alleges upon information and belief as follows:

1. At all times hereinafter mentioned, plaintiff CHRISTOPHER FOYE was an adult male.
2. At all relevant times hereinafter mentioned, defendant City of New York (the “City”) was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York and acts by and through its agencies, employees and agents, including but not limited to, the New York City Police Department (“NYPD”) and its employees and agents.
3. At all relevant times hereinafter mentioned, defendant SARAH YENKIAH was employed by the City as a member of the NYPD, Tax No.: 970948. YENKIAH is sued herein in her individual capacity.
4. At all relevant times hereinafter mentioned, defendant JOHN DOE 1 was an individual employed by the City as a member of the NYPD whose full identity is unknown to plaintiff at this time. Doe 1 is sued herein in his individual capacity.

5. At all relevant times hereinafter mentioned, defendant JOHN DOE 2 was an individual employed by the City as a member of the NYPD whose full identity is unknown to plaintiff at this time. Doe 2 is sued herein in his individual capacity.

6. During the evening hours of June 3, 2022, the plaintiff was lawfully operating a motor vehicle on Shore Parkway in Kings County, New York when he was subjected to a vehicle stop by defendants YENKIAH and DOE 1.

7. YENKIAH and DOE 1 claimed that they were stopping plaintiff because he had failed to stop at a stop sign.

8. This statement was false as plaintiff was operating the vehicle lawfully and had not failed to stop at any stop signs that evening.

9. YENKIAH and DOE 1 were both uniformed police officers and were, upon information and belief, on duty and acting under color of law.

10. The individual defendants were operating a marked NYPD vehicle when they directed the plaintiff to stop his vehicle.

11. Plaintiff complied with the defendants' request for his driver's license, insurance, and registration.

12. The vehicle was properly insured and registered.

13. Plaintiff's driver's license was lawfully issued by the State of New Jersey.

14. Plaintiff did not have any open bench or arrest warrants.

15. Notwithstanding the absence of probable cause to arrest plaintiff, the defendants placed plaintiff under arrest and handcuffed him.

16. While still at the scene of the arrest John Doe 2 arrived.

17. JOHN DOE 2 was, upon information and belief, an NYPD Sergeant with supervisory authority over YENKIAH and DOE 1.

18. The handcuffs were overly tight and caused plaintiff to suffer injuries to his right wrist.

19. The plaintiff complained to the defendants that the handcuffs were hurting him but they refused to loosen or adjust them to alleviate the pain.

20. Plaintiff was eventually transported to a local Police Service Area.

21. Defendant YENKIAH thereafter issued plaintiff Desk Appearance Ticket ("DAT") number 801-00032 in which she alleged that plaintiff had violated NY VTL § 511 by driving without a license.

22. However, as the defendants were well aware, plaintiff had a valid driver's license issued by the State of New Jersey, which he had produced to the defendants.

23. Defendants' claim that plaintiff was driving without a valid license was materially false.

24. As a result of being issued the DAT, plaintiff was required to appear in criminal court in Kings County where he was prosecuted under Docket CR-016691-22KN for allegedly violating NY VTL §§ 509 and 511.

25. On August 4, 2022, the prosecution was dismissed and terminated in plaintiff's favor.

26. The defendants' use of overly tight handcuffs, which they refused to loosen or adjust, caused plaintiff to suffer injuries his right wrist, or otherwise exacerbated an existing injury, or triggered a sub-latent condition resulting in an injury to plaintiff's right wrist.

27. To the extent that any of the individual defendants did not affirmatively participate in the decision to arrest the plaintiff, effectuate the plaintiff's arrest, or place handcuffs on plaintiff's wrists, each defendant was aware that the others were engaged in unconstitutional conduct, that plaintiff's rights were being and would continue to be violated, and failed to take any steps to intervene in said unconstitutional conduct or otherwise protect plaintiff from harm, despite ample opportunity to do so.

28. The individual defendants, including DOES 1 and 2, are therefore liable for the false arrest and imprisonment of the plaintiff, as well as his malicious prosecution and the denial of a fair trial, either because they affirmatively did so or before of their deliberate failure to intervene in the other's unconstitutional conduct, and were, at all relevant times herein, acting jointly and in concert.

29. That at all times relevant herein, the defendants were on duty and acting within the scope of their employment, and their acts were done in furtherance of the City of New York's interests and without legal justification or excuse.

FIRST CAUSE OF ACTION

(Violation of Civil Rights Pursuant to 42 USC §1983
Against the Individual Defendants)

30. Plaintiff CHRISTOPHER FOYE repeats and realleges each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

31. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of law.

32. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth, Sixth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

33. The acts complained of were carried out by the individual defendants in their capacity as police officers, with all the actual and/or apparent authority attendant thereto, and pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

34. The individual defendants, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the NYPD and thereby the City of New York, which is forbidden by the Constitution of the United States.

35. The acts complained of deprived plaintiff of his right:

- a. not to be deprived of liberty without due process of law;
- b. to be free from seizure and arrest absent probable cause;
- c. to receive equal protection under the law;
- d. not to be subjected to excessive or objectively unreasonable force; and,
- e. to be free from unwarranted and malicious criminal prosecution.

36. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused plaintiff to suffer physical and emotional injuries, mental anguish, loss of liberty, economic loss, and the loss of their constitutional rights, in an amount in excess of the jurisdictional minimum of this Court, and to be further entitled to punitive damages in a sum to be determined at trial.

SECOND CAUSE OF ACTION

(False Arrest and Imprisonment Pursuant to 42 USC §1983
Against the Individual Defendants)

37. Plaintiff CHRISTOPHER FOYE repeats and realleges each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

38. The individual defendants willfully and intentionally seized, arrested, and caused the plaintiff to be imprisoned without any lawful basis, much less probable cause, and lacked any reasonable basis to believe probable cause existed.

39. To the extent that any of the individual defendants did not affirmatively seize or place plaintiff under arrest, each such defendant was aware that plaintiff's constitutional rights were being and would continue to be violated, and failed to take any steps to intervene in said unconstitutional conduct or otherwise protect plaintiff from harm, despite ample opportunity to do so.

40. As a result of their unlawful arrest by the defendants, the plaintiff was imprisoned and deprived of his liberty.

41. Plaintiff was conscious of the deprivation of his liberty and did not consent to any such deprivation.

42. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused the plaintiff to suffer physical and emotional injuries, mental anguish, loss of liberty, economic loss, and the loss of his constitutional rights, in an amount in excess of the jurisdictional minimum of this Court, and to be further entitled to punitive damages in a sum to be determined at trial.

THIRD CAUSE OF ACTION

(Excessive Force Pursuant to 42 USC §1983
Against the Individual Defendants)

43. Plaintiff CHRISTOPER FOYE repeats and realleges each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

44. The individual defendants used physical force or caused physical force to be used against the plaintiff by deliberately placing overly tight handcuffs on his wrists.

45. The defendants' use of force was objectively unreasonable or otherwise was used to further the unlawful arrest of the plaintiff.

46. The individual defendants, individually and collectively, subjected the plaintiff to excessive force in violation of the plaintiff's rights under the Fourth Amendment to the United States Constitution.

47. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused plaintiff to suffer physical and emotional injuries, mental anguish, loss of liberty, and the loss of his constitutional rights, in an amount in excess of the jurisdictional minimum of this Court, and to be further entitled to punitive damages in a sum to be determined at trial.

FOURTH CAUSE OF ACTION

(Malicious Prosecution Pursuant to 42 USC §1983
Against the Individual Defendants)

48. Plaintiff CHRISTOPER FOYE repeats and realleges each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

49. The individual defendants willfully and intentionally caused the initiation of plaintiff's prosecution through the communication of materially false statements and/or materially misleading factual claims to the KCDA.

50. There was no probable cause for the prosecution of plaintiff for any of the charged offenses.

51. The criminal prosecution was terminated in plaintiff's favor.

52. The defendants acted with malice in bringing about and sustaining the plaintiff's prosecution.

53. To the extent that any one of the individual defendants did not personally engage in any of the aforementioned conduct, they witnessed this conduct or otherwise knew and understood that such fabrications would be or had been communicated to prosecutors, had ample opportunity to intervene to prevent it from occurring or continuing to occur, and failed to do so.

54. By so doing, the individual defendants directly caused the plaintiff to be maliciously prosecuted, or through their failure to intervene in such misconduct by their fellow officers, aided and abetted in the violation of, plaintiff's rights under the Fourth and/or Fourteenth Amendments of the United States Constitution.

55. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused plaintiff to suffer emotional injuries, mental anguish, loss of liberty, and the loss of his constitutional rights, in an amount in excess of the jurisdictional minimum of this Court, and to be further entitled to punitive damages in a sum to be determined at trial.

FIFTH CAUSE OF ACTION

(§1983 Fabricated Evidence/Denial of Fair Trial Claim Against the Individual Defendants)

56. Plaintiff CHRISTOPHER FOYE repeats and realleges each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

57. The individual defendants willfully and intentionally subjected plaintiff to the denial of his right to a fair trial by fabricating evidence and communicating said materially false statements and/or materially misleading factual claims to the QCDA, thereby causing plaintiff to suffer a loss of liberty.

58. To the extent that any one of the individual defendants did not personally engage in any of the aforementioned conduct, they witnessed this conduct or otherwise knew and understood that such fabrications would be or had been communicated to prosecutors, had ample opportunity to intervene to prevent it from occurring or continuing to occur, and failed to do so.

59. By so doing, the individual defendants directly subjected the plaintiff to the denial of a fair trial through the use of fabricated evidence or through the failure to intervene in such misconduct by their fellow officers, and aided and abetted in the violation of,

plaintiff's rights under the Fourth, Sixth, and/or Fourteenth Amendments of the United States Constitution.

60. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused plaintiff to suffer emotional injuries, mental anguish, loss of liberty, and the loss of his constitutional rights, in an amount in excess of the jurisdictional minimum of this Court, and to be further entitled to punitive damages in a sum to be determined at trial.

SIXTH CAUSE OF ACTION
(New York City Administrative Code §8-802 et seq.
Against the City of New York and the Individual Defendants)

61. Plaintiff CHRISTOPHER FOYE repeats and realleges each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

62. Each individual defendant is liable to the plaintiff under New York City Administrative Code (§8-802) for (i) falsely arresting and imprisoning the plaintiff; (ii) subjecting the plaintiff to malicious prosecution; and (iii) using excessive force against him at the time of his arrest.

63. To the extent that any one of the individual defendants did not personally engage in any of the aforementioned conduct, they were aware that it was or would be happening, had ample opportunity to intervene to prevent it from occurring or continuing to occur, and failed to do so.

64. The City of New York, as the individual defendants' employer, is liable under §8-803 for the acts of its employees and agents, including these individual defendants.

65. By reason thereof, the municipal defendant and the individual defendants have violated§8-802 et seq., and caused plaintiff to suffer emotional and physical injuries, mental anguish, incarceration, and the deprivation of his liberty.

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WHEREFORE, the plaintiff demands judgment against defendants jointly and severally as follows:

- i. actual and punitive damages against the individual defendants in an amount to be determined at trial;
- ii. actual damages in an amount to be determined at trial against the City of New York;
- iii. statutory attorney's fees pursuant to, *inter alia*, 42 U.S.C. §1988 and New York City Administrative Code §8-805, and expenses and costs of the action;
- iv. an order issued by this Court expressly restraining each defendant found liable from engaging in further conduct in violation of Administrative Code §8-802, as required under New York City Administrative Code §8-805(a)(3); and,
- v. such other relief as the Court deems just and proper.

Dated: New York, New York
July 17, 2024

LUMER LAW GROUP
Attorneys for Plaintiff



Michael Lumer, Esq.
14 Wall Street, Suite 1603
New York, New York 10005
(212) 566-5060

VERIFICATION

Michael Lumer, affirms under penalty of perjury that:

1. I am the attorney for the plaintiff CHRISTOPHER FOYE in the within action, am duly admitted to practice law before the Courts of New York State, and make this verification pursuant to CPLR 2106 and further pursuant to CPLR 3020(d)(3).
2. This verification is based on extensive interviews with the plaintiff, his prior testimony, and a review of the files and records in my possession.
3. I have read and know the contents of the foregoing Complaint, and verify the same are true based on my knowledge, except as to those matters alleged upon information and belief, and as to those matters, I believe them to be true.
4. The plaintiff does not reside in the same county wherein my office is located and therefore I make this verification on the plaintiffs' behalf pursuant to CPLR 3020(d)(3).

Dated: New York, New York
July 17, 2024



Michael Lumer